

HAMPTON v. EAST BAY MUNICIPAL UTILITY DISTRICT

22CV46329

DEFENSE MOTION FOR SUMMARY JUDGMENT

This is a personal injury action. Plaintiff generally alleges that while recreating along the south shore of Lake Camanche, near the Arrowhead campground, he dove into the water from a rock wall and struck a submerged boulder, resulting in quadriplegia.

Before the Court this day is a summary judgment motion. Defendant Urban Park Concessionaires (“UPC”) contends that it is entitled to summary judgment/adjudication because neither of the two causes of action stated in the operative First Amended Complaint (negligence and premises liability) can succeed against it. According to UPC, it did not owe plaintiff any duty of care to protect him from injuries caused by diving into a submerged boulder because:

1. UPC had no control over the water level in the lake, and thus had no ability to warn or guard against a boulder that became invisible;
2. plaintiff’s injury was the result of a volitional act of diving into unfamiliar waters and colliding with an open and obvious danger;
3. plaintiff’s injury was the result of an inherent/unavoidable risk associated with shallow-water diving, and UPC did nothing to increase that risk.

When this motion was first heard, this Court observed that the papers made frequent references to “evidence” but failed to provide supporting pinpoints to permit this Court to locate the “evidence” referenced. The hearing was continued to permit plaintiff to (1) secure the referenced evidence via additional discovery and (2) provide said evidence in a supplemental filing with the precision needed in a case such as this. Plaintiff has done both to this Court’s satisfaction, demonstrating sufficient triable issues to reach a jury. The motion for summary judgment/adjudication is DENIED.

The first issue is duty. UPC points to a contract it has with co-defendant EBMUD which permits a liberal reading that UPC is not *contractually* obligated – as between itself and EBMUD – to maintain the rock wall, shoreline and/or water levels adjacent thereto. There are triable issues of fact regarding the scope of the *contractual* obligations assumed by UPC, but those are largely irrelevant to the question of whether UPC had a duty (in law or by assumption) to make said premises reasonably safe under the circumstances. For that question, the focus is on control over the premises, not the arrangement UPC had with another party. (See *Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156; *Lopez v. City of Los Angeles* (2020) 55 Cal.App.5th 244, 250, 258;

Contreras v. Anderson (1997) 59 Cal.App.4th 188, 197-199; *Seaber v. Hotel Del Coronado* (1991) 1 Cal.App.4th 481, 489.) In a word, this is akin to duties that are nondelegable, regardless of contractual arrangements made with third-parties. Did UPC have *or assume* sufficient control over the rock wall and shoreline such that it would be reasonable to impose a duty upon it to make those premises safe? Neither side has focused on the *Rowland* factors or the *Alcaraz* “control” exception to answer this (see *Montes v. YMCA of Glendale* (2022) 81 Cal.App.5th 1134, 1140), but given the body of facts, there is clearly a question as to the scope of control.

The next issue is open and obvious. Since there is undisputed evidence that the water level changes, and the subject rock is sometimes submerged and sometimes not, it seems to this Court that no reasonable factfinder would conclude that the rock was *necessarily* open and obvious to someone in plaintiff’s shoes, to wit: diving into the water that very day, at the same time. (See, e.g., *Zuniga v. Cherry Avenue Auction, Inc.* (2021) 61 Cal.App.5th 980, 995-996; *Bunch v. Hoffinger Industries, Inc.* (2004) 123 Cal.App.4th 1278, 1299-1300.) The fact that plaintiff was apparently intoxicated and careless certainly impacts comparative fault and recovery, but not the objective inquiry associated with conditions that are open and obvious. A condition that remains static can certainly be deemed open and obvious as a matter of law, but a condition that changes in character (as alleged here) cannot. There must be evidence of whether the rock was, on that day, open/obvious, and plaintiff alleges that it was not. Defendant has presented no evidence either way.

Finally, there is the question of assumption of the risk. Generally, each person has a duty to use ordinary care and is liable for injuries caused by a failure to exercise reasonable care under the circumstances. (Civil Code §1714.) Implied primary assumption of the risk is an exception to the rule, and arises when, as a matter of law and policy, a defendant owes no duty to protect a plaintiff from particular harms. Applied in the context of recreation, the doctrine precludes liability for injuries arising from risks inherent in the activity. The question is not what risks a particular plaintiff appreciated, but rather what was the fundamental nature of the activity undertaken. (*Avila v. Citrus Community College District* (2006) 38 Cal.4th 148, 161.) “Under the primary assumption of risk doctrine, operators, sponsors and instructors in recreational activities posing inherent risks of injury have no duty to eliminate those risks, but do owe participants the duty not to unreasonably increase the risks of injury beyond those inherent in the activity.” (*Nalwa v. Cedar Fair, L.P.* (2012) 55 Cal.4th 1148, 1162.) The key is to determine what risks are “inherent” in the activity. (*Knight v. Jewett* (1992) 3 Cal.4th 296, 318.) Generally speaking, injuries resulting from going too fast, making sharp turns, not taking certain precautions, or proceeding beyond one’s abilities are inherent. (*Moser v. Ratinoff* (2003) 105 Cal.App.4th 1211, 1222.) A risk is also considered “inherent” if its elimination would chill vigorous participation or alter the fundamental nature of that activity sport. (*Ferrari v. Grand Canyon Dories* (1995) 32 Cal.App.4th 248, 253.) Judges are to use common sense, focusing on the risk of injury rather than the degree of harm suffered. (*Luna v. Vela* (2008) 169 Cal.App.4th 102, 110; *Calhoon v. Lewis* (2000) 81 Cal.App.4th 108, 116.)

There is no question that diving into unfamiliar waters has a degree of risk assumption. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1005.) Drowning is a risk, as is hitting something beneath the surface. The question here is whether UPC did something to increase the risk of getting hurt diving off the rock wall (as contrasted with the degree of harm suffered), and to that extent plaintiff presents evidence that UPC participated with EBMUD in the selection of contractor and/or actual placement of the rock which plaintiff struck. Admittedly the evidence on this is somewhat ambiguous: on the one hand, the evidence clearly permits an inference that EBMUD “placed” the rock, and therefore increased the risk of injury associated with diving, but if UPC had any role in that placement, it too could be on the hook for increasing the risk. This is the “key” issue here, which in fairness it appears both sides have somewhat glossed over. Plaintiff says UPC participated, defendant says that is not relevant. Thus, the balance favors plaintiff – at least at this juncture – with application of the primary assumption of risk doctrine since that is an element of duty, which is part of UPC’s initial burden to negate.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.